PATRICIA DENGEZI
versus
MUNYARADZI NYAMARURU (1)
and
XOLISANI MOYO (2)
and
CHAMPIONS INSURANCE COMPANY LIMITED (3)
and
THE COMMISSIONER GENERAL OF POLICE (4)
and
THE MINISTER OF HOME AFFAIRS (5)

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 16 September 2025

Civil Trial

T Biti for the plaintiff
T Tembo, for the 4th and 5th defendants

DEMBURE J:

INTRODUCTION

1. The wheels of justice grind slowly at times. This is a contested action instituted on 9 April 2018, in which the plaintiff seeks delictual damages against the defendants arising from a motor vehicle accident that occurred on 17 April 2017. The trial could not commence when the matter was set down before MAKOMO J (as he then was), as on 10 October 2022, the court stayed the action pending the decision of the Constitutional Court. The court referred the matter to the Constitutional Court in terms of s 175(4) of the Constitution for a determination of the constitutionality of the provisions of s 70 of the Police Act [*Chapter 11:10*], which sets the prescription period of eight (8) months for a person to institute civil proceedings against the Police.
2. On 20 November 2023, the Constitutional Court handed down its judgment in *Dengezi v Nyamaruru & Ors* CCZ 13-23, the operative part of which was that the matter was struck off the roll with no order as to costs. The court's decision was based on two reasons: firstly, that the referral was improperly made as the issue of prescription did not arise in

this court because no special plea of prescription had been pleaded; and secondly, the matter before this court had been rendered abortive following the death of the presiding judge, MAKOMO J (as then was).

3. On 11 December 2024, the trial eventually commenced before me. The first and second defendants were in default. Following the court's judgment on 14 February 2025 on the applications for absolution from the instance made by the defendants, the only defendants put to their defence are the fourth and fifth defendants. Absolution from the instance was granted in favour of the third defendant.

THE PARTIES

4. The plaintiff is Patricia Dengezi, a female adult who comes from Dengezi Village in Murewa. The first defendant is Munyaradzi Nyamaruru, a male adult Zimbabwean who was, at the time the cause of action arose, employed as a driver by the second defendant. The second defendant, Xolisani Moyo, is also an adult male Zimbabwean and the owner of the motor vehicle in question, a commuter omnibus, being a Nissan Caravan, registration number ACZ6652 (*"the motor vehicle"*). The third defendant herein, Champions Insurance Company Limited, was the third-party insurer of the second defendant's motor vehicle. The fourth defendant is the Commissioner General of Police, who is in charge of the police service. The fifth defendant is the Minister of Home Affairs, who is in charge of the police service and also administers the Police Act. The fourth and fifth defendants are the authorities in charge of the police service and are, by law, vicariously liable for delicts committed by police officers within the scope and course of employment.

FACTUAL BACKGROUND

5. The following facts are common cause:

5.1. On 17 April 2017, at around 5 pm, the first defendant was involved in an accident while driving his motor vehicle along Chinhoyi Street, a one-way road for traffic from the northern side of the city towards the southern end, the exit to Machipisa. The accident occurred during a peak hour and on a pavement along Chinhoyi Street at the then Flexmart shop located between Robert Mugabe and Albion Streets in Harare Central District. The first defendant, who was on his right of way, suddenly encountered speeding 5 or 6 commuter omnibuses driving against the flow of traffic towards him as they were

fleeing from the police, in particular three (3) traffic police officers. To avoid a head-on collision, he veered off the road to his right and climbed onto the pavement close to the then Flexmart shop, where the motor vehicle hit the plaintiff and her minor child, Lesley Chitanda, aged one (1) year two months.

5.2. The plaintiff sustained serious injuries to her back and leg, while the minor who was smashed by the motor vehicle died on the spot. The plaintiff was selling her wares on the pavement while seated with her child, and she had no valid vending licence. After the accident, the plaintiff, the first defendant, plaintiff's witness, Sibongile Mazividza, one Shingirai Nhimba holding the deceased child and the three police officers later proceeded to Harare Central Police Station in the first defendant's motor vehicle. A police report was made for the plaintiff and her child to be taken to hospital. The plaintiff's child was pronounced dead at Parirenyatwa Hospital and later buried while the plaintiff was in hospital. The plaintiff was unconscious after the accident and was admitted in hospital for three weeks.

5.3. The first defendant was charged with culpable homicide following the accident. He was arraigned before the Magistrates' Court, facing the said offence. He later absconded, and a warrant of arrest was issued against him, which is still outstanding.

6. The plaintiff instituted an action against the defendants for delictual damages on 9 April 2018. The claim against the fourth and fifth defendants was based on that, by law, they are liable for the unlawful and negligent conduct of the three police officers involved. The relevant part of the plaintiff's declaration pleaded the cause of action as follows:

> "7. On the 17th of April 2017, the Plaintiff, a vendor, was selling her wares, on a pavement in Chinhoyi Street close to Robert Mugabe in the company of her one year two months old son Leslie Chitanda.
>
> 8. At a certain point in time, 3 officials from the Zimbabwe Republic Police, threatened to arrest and indeed intimidated certain commuter omnibuses and their drivers which commuter omnibuses and drivers then fled against the one way in Chinhoyi Street going away from Robert Mugabe.
>
> 9. As a result of these unlawful actions by the Zimbabwe Republic Police a commuter omnibus travelling in the right but opposite direction being driven by the 1st Defendant Munyaradzi Nyamaruru, being Nissan Caravan Registration Number ACZ6652 owned by the 2nd Defendant, was forced to veer off the road into the pavement where the same hit into the Plaintiff and smashed her one year old child Leslie Chitanda who immediately died on the spot.
>
> 10. The aforesaid accident was therefore caused by the 1st Defendant and members of the Zimbabwe Republic Police.
>
> 11 . …

12. The Zimbabwe Republic Police were reckless and negligent in that;
(a) their behaviour towards commuter omnibuses was unlawful, unconstitutional and intimidatory particularly, the reckless and unlawful use of spikes.
(b) The Zimbabwe Republic Police details ought to have realised that their action and intimidatory behaviour would unleash foreseeable chain of events including the loss of life as happened in this case and many other cases.
13. ...
14. As a result of the accident the Plaintiff has suffered extensive damages and was hospitalised for a substantial period.
15. …
16. Further as a result of the accident, the Plaintiff has lost the love and loss of consortium from her minor child Leslie Chitanda.
17. Accordingly, as a result of the accident, the Plaintiff has suffered the following;
(a) Damages for pain, shock and suffering in respect of her own injuries - US$50,000.00;
(b) Damages for loss of consortium bereavement and loss of her minor child Leslie Chitanda - US$250,000.00;
(c) Aggravated damages, for reckless behaviour as against the Zimbabwe Republic Police alone — US$50,000.00;
(d) Special damages for loss of income from vending activities US$50,000.00;
(e) Special damages in respect of funeral expenses and other medical expenses US$10,000.00.
18. The requisite notices in terms of the law have been provided to both the 4th and 5th Defendants."

7. The third, fourth and fifth defendants contested the plaintiff's claim. The third defendant's defence was that it did not know about the allegations giving rise to the claim. It further accepted liability only up to the statutory limit of US$2,000.00 if the second defendant, the insured, was to be found liable for the delict.

8. The fourth and fifth defendants, on the other hand, also denied that the actions of the police officers were unlawful. In the substantive part of their plea, in particular para(s) 3, 5 and 7, it was further contended that:

"Ad Paragraph 8, 9, 10
3. …It is not unlawful for a Police Officer to arrest a driver who is violating road traffic rules. It is also not reasonably foreseeable that if a police officer arrests a traffic offender, they would drive against traffic in one way road. The police did not in any way contribute to the negligence by a driver who drove against traffic in a one way road causing the death of the minor.
4. …
Ad Paragraph 12
5. This is disputed. It is regrettable that the life of an innocent child was lost but this cannot be blamed on the police. The driver of the omnibus was violating the road traffic rules. It is the mandate of the police to enforce compliance with the law.
6. …
Ad Paragraph 14-17

7. The Police are not responsible for the death of the minor child. The 4th and 5th Defendants are therefore not liable in any way. The plaintiff is put to the strict proof thereof as against the 4th and 5th Defendants."

9. On 11 December 2024, the plaintiff opened her case by giving evidence. She also, by consent, tendered the evidence of a medical doctor who is a specialist psychiatrist, one Anesu Isabel Chinoperekwei. After her testimony, she called one witness, Sibongile Mazividza (*"Sibongile"*), who gave her evidence. At the close of the plaintiff's case, the third, fourth and fifth defendants applied for absolution from the instance. On 14 February 2025, the court granted the application in favour of the third defendant, while the applications by the fourth and fifth defendants were refused.

10. On 12 May 2025, the trial thereafter proceeded with the fourth and fifth defendants being put to their defence. The fourth and fifth defendants called two witnesses, Sergeant Solomon Kanyoka (*"Mr Kanyoka"),* who was the police investigating officer and Constable James Thomas (*"Mr Thomas"*), the police traffic accident evaluator. I hasten to state that the defendants did not produce any documentary evidence to substantiate their case, despite that the court had granted them an opportunity to do so on 21 November 2024 following an application for a postponement. They also had ample time before that date to do so, but chose not to do so. Their witnesses related to several documents, including police reports, a police diary, statements recorded from witnesses, a police manual and standing orders and the accident evaluation report, but these were never placed before me.

11. The issues for trial, as captured in the parties' joint pre-trial conference minute filed of record, were as follows:

"1.1 Whether or not the 4th Defendant's police officers controlling traffic along Chinhoyi Street on the 17th of April 2017 negligently caused the accident in question.

1.2 In the event that the 4th and 5th Defendants are liable for the accident in question, the quantum of damages due to the plaintiff from the 4th and 5th Defendants.

1.3 The extent of damages recoverable from the 3rd Defendant.

12. The only question left for determination was the first issue. The third issue was resolved by the judgment granting absolution from the instance in favour of the third defendant. As for the second issue of the quantum of damages, the parties entered into a deed of settlement consenting to judgment on an agreed sum of US$42,000.00 as damages

payable to the plaintiff, if the fourth and fifth defendants are found liable for the delict together with interest thereon. The said deed of settlement, duly signed by the parties' legal practitioners, was filed on 17 July 2025, and it resolved the second triable issue. The relevant parts thereof read:

> "4 On the 26th of June 2025, the Plaintiff, and the 4th and 5th Defendant held a meeting in respect of which it was agreed that, in the event, of the court, finding that the 4th and 5th Defendants caused the accident, and were negligent as argued and prayed for by the Plaintiff then the 4th and 5th Defendants shall pay damages in the sum of US$42,000.00 (Forty-two thousand United States Dollars) to the Plaintiff,
> 5. Thus, the parties therefore agree that in the event of the court finding the 4th and the 5th Defendants liable damages in the sum of US$42,000.00 (Forty-two thousand United States Dollars) shall be granted in favour of the Plaintiff with interest on the above amount from the date of judgment."

13. The defendants closed their case on 14 July 2025. The parties opted to file written closing submissions. They duly complied with the timelines set out in the case management order.

THE EVIDENCE

14. For the plaintiff's case, the plaintiff herself gave evidence first. She was a credible witness. Even under cross-examination, she remained unshaken, and she maintained that if the police had not thrown spikes, Lesley would have been alive. At times, she got overwhelmed with emotions but still soldiered on. The plaintiff and her witness, Sibongile Mazividza (*"Sibongil*e*"*), were the only eyewitnesses to the events of 17 April 2017 in court. She described the events on the day vividly. She stated that on that fateful day, she was in front of Flexmart Supermarket, which was opposite ZB Bank along Chinhoyi Street, where she was selling her wares. She was sitting against the wall of the shop on the pavement and on a stool made of cardboard boxes. Her son was on her lap and she was feeding him with chips. The place is along Chinhoyi Street between Robert Mugabe and Albion Streets.

15. She also testified that Chinhoyi Street was then and still is a one-way traffic road and a very busy road used by many commuter omnibuses, including those from Kuwadzana. It was during peak hour that she saw 3 police officers in uniform moving across from the Total Service Station. They had baton sticks and spikes. There were commuter omnibuses parked, facing ZB Bank, close to where she was vending. When the police drew nearer

the commuter omnibuses at the corner of Chinhoyi Street and Robert Mugabe, they threw spikes in front of the first commuter omnibus to prevent it from moving. At the same time, they also smashed and shattered the windscreen of the motor vehicle in question. These actions led about 5 or 6 commuter omnibuses, including the one that was hit with baton sticks, to turn and speed off against the flow of traffic towards the direction of the Copa Cabana bus rank.

16. It was also her evidence, which was confirmed by Sibongile and the defendant's second witness, that the first defendant, who was driving in the opposite direction and on his right path, was confronted by these fleeing commuter omnibuses and that, in a bid to avoid a head-on collision, he veered off the road to the right. He climbed over the pavement and hit the plaintiff and her child. A great portion of her cross-examination was centred on the issue that she was conducting illegal vending at the scene of the accident. She, however, maintained that when the police smashed the windscreen of one of the vehicles, that was when they all started to flee against the flow of traffic. She also stressed that if the spikes had not been thrown, the commuter omnibuses would have moved on their normal way, and an accident would not have occurred.

17. She also testified as to how her life was shattered by the events of 17 April 2017, which have remained stuck in her mind to the date she testified. Her evidence on that part was unchallenged. She tendered as part of her evidence both the birth and death certificates for Lesley and the burial order. Also tendered with the consent of the defendants was an affidavit from the medical doctor, a specialist psychiatrist, one Doctor Anesu Isabel Chinoperekwei, who examined her in January 2022. The doctor confirmed the psychological harm the accident and the resultant loss of her only child had on her. Her diagnosis was that the plaintiff had "experienced severe depression and post-traumatic stress disorder with panic attacks since the incident of the accident."

18. The plaintiff also called Sibongile as her witness. Her evidence well corroborated that of the plaintiff. She was by the plaintiff's side on 17 April 2017 and was also selling her wares when the accident occurred. Her evidence was believable and was an eye-witness account. She remained unshaken during cross-examination. She confirmed the plaintiff's evidence regarding the time the accident occurred that it was at around 5 pm, when the police came from the direction of the Total Service Station, holding baton sticks and a

spike. She also confirmed that it was during peak time, and there was an increased movement of people and motor vehicles at the time. She also confirmed that when the police came, they threw spikes at the corner of Robert Mugabe Way in front of the first commuter omnibus and hit the first commuter omnibus with baton sticks whose windscreen was shattered as a result. About 5 or 6 commuter omnibuses had to change direction and flee against one-way traffic at high speed.

21. Under cross-examination, she admitted it was one spike that was thrown along Robert Mugabe Way to prevent commuter omnibuses from moving. She stated that the drivers of the commuter omnibuses panicked when hearing the sound of the spikes being thrown on the ground. She also confirmed how the first defendant reacted when he was confronted by the speeding commuter omnibuses coming from the opposite direction. Her testimony in that regard tallied with that of the defendants' second witness, who also indicated that the first defendant's reaction was only what he could reasonably do in the circumstances. She also maintained that if the three police officers had not come on the day and acted as they did, the commuter omnibuses would have loaded and left without any incident, as they were doing so daily.

20. She narrated how the police officers attempted to run away after the accident, that she went with them to Harare Central Police Station, and only one was left when they arrived at Parirenyatwa Hospital, but later disappeared.

21. The evidence of the plaintiff and her witness was not seriously challenged in material aspects. Ms *Tembo* also failed to put the material evidence of the defendants to the plaintiff and her witness under cross-examination. For example, the evidence that Mr Solomon and Mr Thomas took them for indications and evaluations at the scene and that they had statements recorded stating what the defendants' witnesses presented in court. Even the evidence relating to police manuals and standing orders referred to by the defendants' first witness was not put to the plaintiff and her witness in cross-examination.

22. On the other hand, the fourth and fifth defendants first called Sergeant Solomon Kanyoka (*"Mr Kanyoka"*), who was the Investigating Officer. His evidence was largely unconvincing. He admitted he did not attend the scene of the accident on the date of the accident. He was not an eye-witness to the events of 17 April 2017. He did not strike me as a reliable and credible witness. He could not recall the names of the other witnesses he

alleged he interviewed during his investigations. When he was questioned about how he had refreshed his memory in the absence of the police diary, he initially claimed that he had read the plaintiff's affidavit, and that jogged his memory. However, when it was further pointed out that there was no affidavit from the plaintiff before the court except the discovery affidavit, he then claimed to have been shown the court documents by counsel for the defendants.

23. In his evidence in chief he never mentioned that the docket was destroyed. However, under cross-examination, when quizzed that it would have been normal for him to refresh his memory using the diary he prepared during his investigations, he started to claim that the docket containing the diary was destroyed. Conveniently so. He had nothing from his investigations to place before the court. Besides the diary, he also did not have any witness statements he alleged to have recorded, the traffic accident report, nor any material to establish that his testimony on what could have happened on the day of the accident could be relied on. His evidence as to what transpired on 17 April 2017, save for his confirmations of facts which are common cause, was entirely unreliable.

24. He could only say that the docket, which had his diary and all the accident reports, was destroyed in accordance with the police standing orders. He produced nothing to substantiate this strange practice or procedure that the police could destroy dockets even for pending cases, and that it is the standard procedure in the police force. He had confirmed that the first defendant is still on an outstanding warrant of arrest after his abscondment. It is difficult to believe his evidence that in such a case, the police, directed by a court warrant of arrest to locate the accused person and bring him to court, would proceed to destroy the docket, the only crucial material from the State for the prosecution of the offender. Without any police administrative instrument supporting such a strange practice, the court cannot believe his testimony.

25. He also alleged that he interviewed the plaintiff several times and took her for indications with the first defendant and Mr Thomas, but all this was never put to the plaintiff or her witness under cross-examination. Not even the claim that statements were recorded from them, and that the docket was destroyed. He claimed that he only heard the issue of spikes in court for the first time. Yet the plaintiff's papers, which he claimed to have used to jog his memory, contained an averment relating to the unlawful use of spikes. In his

evidence in chief, he did not substantiate his evidence that spikes are international tools of trade for the police, nor did he produce any police manual supporting their use on the fateful day. It was only under cross-examination that he referred to what was called the Counter-Insurgency Manual or the "*COIN Manual*", and reference was made to South Africa as one of the countries using spikes.

26. He also testified that he recorded statements from a vendor and a security guard, but could not remember their names. He confirmed that from the statements he recorded, there was mention of the 3 police officers, but he failed to establish their identity when he carried out investigations. He accepted that at peak hour, several commuter omnibuses moving in the wrong direction would lead to chaos and confusion. He admitted investigations are a matter of record and that he had no hard evidence, as the docket was destroyed through the police internal administration.

27. After Mr Kanyoka's testimony, the traffic accident evaluator, Constable James Thomas (*"Mr Thomas"*), testified for the defendants. He stated that he went for evaluations with the first defendant, Mr Kanyoka and the plaintiff on 9 May 2017. This was about 21 days following the accident. While he said he had a soft copy of the report in his phone, it was not produced before me. He admitted under cross-examination that his report is critical in the assessment of liability in traffic accident claims. To buttress his allegations, such an evaluation report ought to have been produced. Further, given that the allegation that he went with the plaintiff for such evaluations was not put to the plaintiff under cross-examination and also that the plaintiff's unchallenged evidence that she was in hospital for three weeks, it made me accept the plaintiff's evidence as the one that was believable. His evidence could not safely be relied upon.

28. He also confirmed the plaintiff's evidence that the first defendant acted reasonably in the circumstances or could not have done anything else possibly to avoid the accident. He further attempted to blame the plaintiff for the accident stating that she was on the road kerb when the accident occurred. This was never stated anywhere in the defendants' papers, and the issue of contributory negligence was also never raised. The issue was also not put to the plaintiff or her witness under cross-examination. That she was on a pavement 3 metres long from the road and by the wall of the shop with Sibongile sitting

on stools of cardboard boxes leaning against the wall was never challenged under cross-examination. To that extent, I could not believe his testimony to be representing the truth.

29. In any case, he accepted that he was also not an eyewitness to the events of 17 April 2017, just like the first witness. He testified that he was advised that the first defendant reacted to the several speeding commuter omnibuses driving against the run of traffic. Under cross-examination, he avoided giving any reason for what led the drivers of the commuter omnibuses to drive unnaturally. He instead insisted that he did not investigate or find out why the drivers thereof were driving abnormally or unnaturally. According to him, it was for the Investigating officer to do so. I found his testimony to be unbelievable, that it was not for him to establish why the commuter omnibuses were fleeing or speeding against the normal flow of traffic. Surely, for a traffic accident evaluation to properly assess the culpability of any of the parties in any accident, the examination of what caused the behaviour of the drivers thereof to drive that way cannot be avoidable. His testimony did not in material respects support the defendants' own plea.

30. Overall, the defendants' evidence was largely unsubstantiated. Without any critical documents to support their findings or investigations, and any police manual or standing orders to support the defendants' plea, it turned out to be a tall order for the fourth and fifth defendants to establish their purported position or rebut the plaintiff's case.

ISSUE FOR DETERMINATION

31. The sole trial issue left to determine is whether or not the fourth defendant's police officers controlling traffic along Chinhoyi Street on 17 April 2017 negligently caused the accident in question.

THE LAW

32. It is common cause that the plaintiff's case against the fourth and fifth defendants is an Aquilian action for damages. The requirements for an Aquilian action are settled. See *Nyaguse* v *Skinners Auto Body Specialists & Another* HH 32-07, where PATEL J (as he then was) restated the law as follows:

> "It is now well-established in our law that the plaintiff in an Aquilian action for patrimonial loss must establish that:
> i. the defendant committed a wrongful act;
> ii. the plaintiff suffered patrimonial loss, viz. actual loss capable of pecuniary assessment;

iii. the defendant's act caused the loss suffered by the plaintiff and that the harm occasioned was not too remote from the act complained of;
iv. responsibility for the plaintiff's loss is imputable to the fault of the defendant, either in the form of *dolus* (intention) or *culpa* (negligence).

[See Lee & Honore : *The South African Law of Obligations* (2nd ed.) at pp.196-202; Boberg: *The Law of Delict* (vol. 1) at pp. 24-25]."

See also G. Feltoe, *A Guide to the Zimbabwean Law of Delict*, 2012 at p 9. The author described the Aquilian action as the cornerstone of our law of delict.

33. In determining the question of whether or not the police officers negligently caused the accident, the onus is on the plaintiff to prove her case on a balance of probabilities. It is settled law that the one who alleges must prove. Thus, in *ZIMSCO (Pvt) Ltd* v *Tsvangirai & Ors* SC 12/20, the court said:

> "It is trite that "he who alleges must prove". The maxim was applied in the cases of *Circle Tracking v Mahachi* SC 4/07 and *Goliath* v *Member of the Executive Council for Health, Eastern Cape* 2015 (2) SA 97 (SCA). In the absence of such evidence, the court as the adjudicating authority cannot make its determination."

See also *City of Gweru* v *Mbaluka* 2014 (1) ZLR 248 (H) at 256G-257E, where the standard of proof required in civil cases of proof on a balance of probabilities was remarkably explained.

ANALYSIS

34. The plaintiff had the onus to establish that the three police officers were negligent and, by their wrongful conduct, caused the accident and the resultant harm to the plaintiff. In relation to fault, the plaintiff's case is that the 3 police officers were reckless or grossly negligent. The fault alleged is that of *culpa* or negligence. The negligence alleged was not only ordinary negligence, but recklessness or gross negligence. In *Standard Chartered Bank of Zimbabwe Ltd v Chipininga* 2004 (2) ZLR 94 (S) "gross negligence" which connotes recklessness was explained as follows:

> "It has been described as 'ordinary negligence of an aggravated form which falls short of willfulness" (*Bickle's case supra*); "very great negligence or want of even scant care or a failure to exercise even that care which a careless person would use". See Prosser "*Law of Torts*" 4ed at 183."

What suffices for delictual liability is, however, any degree of negligence. Thus, even ordinary negligence would meet the requirements for Aquilian action.

35. It is settled law that the test applied for negligence is the objective test of the reasonable person (the *diligens paterfamilias*). In *City of Harare v Mungate* SC 86-22 at p 9, MAKONI JA restated the test for negligence as follows:

> "Thus in the case of *Kruger v Coetzee Supra* at 430E-G lays down the standard test for negligence which is:
> (i) Whether the harm was reasonably foreseeable;
> (ii) Whether the *diligens pater familias* would have taken reasonable steps to guard against such occurrence and
> (iii) Whether the defendant failed to take those steps.
> In *United Bottlers (Private) Limited v Shambawamedza* 2002 (1) ZLR 341 (S) at 346 C-F this Court stated;
>> "It has been said that negligence is a question of fact and the onus of proving it is on the party alleging it. A person is negligent if he did not act as a reasonable man would have acted in the particular circumstances. He will be held liable for the actual consequences of his negligence which are reasonably foreseeable."
> In *Cape Town Municipality v Paine* 1923 AD 207 at 216- 7, INNES CJ said:
>> "It has repeatedly been laid down in this Court that accountability for unintentioned injury depends upon *culpa*, - the failure to observe that degree of care which a reasonable man would have observed. I use the term reasonable man to denote the *diligens paterfamilias* of Roman law, - the average prudent person. Every man has a right not to be injured in his person or property by the negligence of another, - and that involves a duty on each to exercise due and reasonable care. The question whether, in any given situation a reasonable man would have foreseen the likelihood of harm and governed his conduct accordingly, is one to be decided in each case upon a consideration of all the circumstances. Once it is clear that the danger would have been foreseen and guarded against by the *diligens paterfamilias*, the duty to take care is established, and it only remains to ascertain whether it has been discharged."
> See also: *Lomagundi Sheetmetal & Engineering (Private) Limited v Basson* 1973 (1) RLR 356 (A) at 362-3, (4) SA (R AD) 523 at 524."

36. In *casu*, it was common cause that the accident happened around 5 pm and during peak hour. The pavements were extremely busy during that time of the day with an increased number of human and vehicular traffic. Chinhoyi Street was also a one-way road from the northern side of the City to the southern side, the Machipisa exit. The plaintiff's evidence, well corroborated by Sibongile, was that the three police officers, despite the circumstances I stated above, which were common cause, went on to throw spikes, thereby disturbing the normal flow of traffic along Robert Mugabe to block the commuter omnibuses illegally parked at an undesignated parking area and picking up passengers from moving in the normal way. They also violently smashed and shattered the first commuter omnibus with baton sticks. This triggered the chaos and pandemonium that ensued as 5 or 6 commuter omnibuses had to speed off, fleeing from the police against

the normal flow of traffic. As Sibongile put it, the sound of the spikes thrown on the road scared the drivers, as these spikes are sharp objects which can damage motor vehicle tyres if one steps on them.

37. Given that this was during a busy time of the day, when the street was crowded and along a one-way road with the immediate point of exit being the direction where the police officers were coming from, I am of the view that the police officers clearly failed to act as a reasonable person would have acted in the particular circumstances. A reasonable police officer, realising the danger and the possible chain of dangerous consequences that throwing spikes and violently smashing a commuter omnibus would pose to the safety of the general public, would have foreseen the same and acted reasonably to avoid the consequences. He would not have acted as these officers did. The 3 police officers in question clearly disregarded the reasonably foreseeable harm that would ensue from their conduct and proceeded nonetheless. They were negligent.

38. I accept that the plaintiff established not only ordinary negligence but recklessness or gross negligence. Their conduct was reckless in the circumstances. They could have been other civilised ways of policing than to smash the commuter omnibus and throw spikes in the busy part of the City during peak hour, and along a road with one-way exit. The fourth and fifth defendants failed to rebut the plaintiff's evidence of such negligence. Mr Kanyoka had nothing to show the court, not even a single statement of eye-witnesses challenging the plaintiff's evidence, corroborated by Sibongile. He himself was not at the scene on the day. He also conceded under cross-examination that if spikes were thrown in the manner described by the plaintiff and at that peak hour, it would cause chaos and confusion. Mr Thomas did not assist the defendants' case either, as he said he did not investigate why the commuter omnibuses were speeding against the flow of traffic at the particular time. The plaintiff discharged the onus to establish that the defendants' employees were at fault or negligent. They breached their duty of care.

39. On the requirement of wrongfulness, SCOTT JA in *Gouda Boerdery Bk v Transnet Ltd* 2005 (5) SA 490 (SCA) from p 499 had this to say:

> "It is now well established that wrongfulness is a requirement for liability under the modern Aquilian action. Negligent conduct giving rise to loss, unless also wrongful, is therefore not actionable. But the issue of wrongfulness is more often than not

> uncontentious as the plaintiff's action will be founded upon conduct which, if held to be culpable, would be *prima facie* wrongful. Typically, this is so where the negligent conduct takes the form of a positive act which causes physical harm. Where the element of wrongfulness gains importance is in relation to liability for omissions and pure economic loss. The inquiry as to wrongfulness will then involve a determination of the existence or otherwise of a legal duty owed by the defendant to the plaintiff to act without negligence: in other words to avoid negligently causing the plaintiff harm. This will be a matter for judicial judgment involving criteria of reasonableness, policy and, where appropriate, constitutional norms. If a legal duty is found to have existed, the next inquiry will be whether the defendant was negligent. The test to be applied will be that formulated in *Kruger v Coetzee*, involving as it does, first, a determination of the issue of foreseeability and, second, a comparison between what steps a reasonable person would have taken and what steps, if any, the defendant actually took. While conceptually the inquiry as to wrongfulness might be anterior to the enquiry as to negligence, it is equally so that without negligence the issue of wrongfulness does not arise for conduct will not be wrongful if there is no negligence. Depending on the circumstances, therefore, it may be convenient to assume the existence of a legal duty and consider first the issue of negligence. It may also be convenient for that matter, when the issue of wrongfulness is considered first, to assume for that purpose the existence of negligence. The courts have in the past sometimes determined the issue of foreseeability as part of the inquiry into wrongfulness and, after finding that there was a legal duty to act reasonably, proceeded to determine the second leg of the negligence inquiry, the first (being foreseeability) having already been decided. If this approach is adopted, it is important not to overlook the distinction between negligence and wrongfulness."

40. I am also satisfied that the plaintiff proved that the police officers' conduct was unlawful and wrongful. The police, when effecting an arrest, are permitted to use reasonable, justifiable and proportionate force (or minimum force) to overcome resistance upon arrest or fleeing suspects. See s 42 of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. It was not shown before me that what the three police officers did in the circumstances was lawful or justifiable at all. The violent smashing of windscreens or private property of any suspects in the name of policing cannot constitute lawful enforcement of traffic laws. Worse in this case, where the commuter omnibuses in question were picking up passengers. That would further endanger the lives of innocent civilians. Mr Solomon admitted under cross-examination that a baton stick would only be used in a rowdy situation and when an officer is under attack to defend himself; otherwise, a decent traffic police officer would issue a ticket to an offender. He admitted that there was no riotous situation or a roadblock along Chinhoyi Street.

41. In my view, the use of spikes coupled with the violent shattering of windscreens during the busy hour and in a crowded street or in the midst of increased human and vehicular traffic was not a justifiable use of force or exercise of lawful policing powers. Their

violent actions were clearly wrong and unlawful. The plaintiff having established a case of unlawful police conduct on the fateful day, the defendants had to rebut that evidence, but they failed. In their plea, they had argued that the police were performing their constitutional duty to enforce traffic laws. Though not in their plea, a position argued by the defendants was also that the use of spikes was not unlawful, as they are internationally accepted tools of trade for the police. However, Mr Kanyoka's evidence was largely not put to the plaintiff and her witness under cross-examination. The law is clear on the effect of the failure to do so. The court would, in such a case, believe the testimony of the plaintiff. I associate myself with the remarks in *President of the Republic of South Africa & Ors* v *South African Rugby Football Union & Ors* 2000 (1) SA 1, at para 61, where the Constitutional Court of South Africa, in explaining the purpose and importance of cross-examination said:

> "The institution of cross-examination not only constitutes a right, it also imposes certain obligations. As a general rule it is essential, when it is intended to suggest that a witness is not speaking the truth on a particular point, to direct the witness's attention to the fact by questions put in cross-examination showing that the imputation is intended to be made and to afford the witness an opportunity, while still in the witness-box, of giving any explanation open to the witness and of defending his or her character. <u>If a point in dispute is left unchallenged in cross-examination, the party calling the witness is entitled to assume that the unchallenged witness's testimony is accepted as correct.</u> This rule was enunciated by the House of Lords in *Browne* v *Dunn* [[1893] 6 R 67 (HL)] and has been adopted and consistently followed by our courts." (emphasis added)

42. Additionally, in *Small v Smith* 1954 (3) SA 434 (SWA) at 438, CLAASSEN J also said:

> "It is, in my opinion, elementary and standard practice for a party to put to each opposing witness so much of his own case or defence as concerns that witness, and if need be, to inform him, if he has not been given notice thereof, that other witnesses will contradict him, so as to give him fair warning and an opportunity of explaining the contradiction and defending his own character. <u>It is grossly unfair and improper to let a witness's evidence go unchallenged in cross-examination and afterwards argue that he must be disbelieved.</u>" (emphasis added)

The above remarks apply with full force in this case. The court has no reason to disbelieve the evidence of the plaintiff, which was well-corroborated by Sibongile that the use of spikes and smashing of windscreens was wrongful or unlawful and reckless in the circumstances. Large parts of Mr Kanyoka and Mr Thomas's evidence were not put to the plaintiff's witnesses. That the issue of spikes was not brought to the attention of Mr Kanyoka before, that he had indications on the scene with the plaintiff and Mr Thomas

and that there exists a COIN Manual which authorises the use of spikes in the circumstances were never put to the plaintiff or her witness under cross-examination.

43. There was, in fact, entirely nothing to substantiate the defendants' case. Mr Kanyoka blamed the destruction of the docket and all documents related to his investigations as the reason he could not produce anything. But that would not assist the defendants' case either. The evaluator, Mr Thomas, also produced nothing despite his claim that he had the report in his phone. The evidence remained in his own phone. Having placed completely nothing before me, even to show that in South Africa or any other countries spikes are internationally accepted and used as tools of trade for the police, showed that the defendants dismally failed to rebut the plaintiff's evidence. Their use, coupled with the smashing of windscreens in the given circumstances, could not be justified as lawful application of force. The general principle of the law is that he who makes an affirmative assertion, whether the plaintiff or defendant bears the *onus* of proving the facts so asserted. See *Nyahondo* v *Hokonya & Ors* 1997 (2) ZLR 457 (S) at 459 where KORSAH JA said:

> "Where a person against whom a claim is made is not content with a mere denial but sets up a special defence or raises a fresh issue (when he confesses and avoids) then he is regarded in respect of that defence as being the claimant; for his defence to be upheld he bears the onus of satisfying the court that he is entitled to succeed on it."

See *Astra Paints Chemical* v *Chamburuka* SC 27/12; *Book v Davidson* 1988 (1) ZLR 365 at 384 B-F.

44. Having claimed that the use of spikes was a lawful policing conduct internationally acceptable and that the police were enforcing traffic laws, the defendants had to prove those assertions. As I said, no police manuals, the said COIN Manual or any other document was produced to substantiate the allegations made by Mr Kanyoka. His evidence was not even corroborated in that regard by Mr Thomas. To that extent, the plaintiff managed to establish that the defendant's conduct was unlawful or wrongful on a balance of probabilities.

45. I must also point out that Mr Kanyoka accepted that investigations by the police are a matter of record. In this case, it was common cause that the first defendant was charged of culpable homicide, and Mr Kanyoka's unchallenged evidence was that he absconded from his trial. He also said that the first defendant is on an outstanding warrant of arrest.

He further confirmed that the docket was returned to the police to action the warrant of arrest. The police, instead, according to him, destroyed the docket. I found it completely unbelievable and unreasonable that the police, knowing fully well that the first defendant was facing a serious offence and the proceedings against him are still pending, would proceed to destroy the docket along with all the relevant police documents for the case, such as the police diary, witness statements, evaluation report and accident reports. This bizarre act, defeating the ends of justice as it does, could not be shown to be based on any standing orders of the police.

46. There was nothing produced to support this unlawful act of destruction of evidence in a serious criminal matter that is still pending. If the suspect is eventually arrested, it would simply mean that he will walk scot free. I, therefore, rejected the evidence as it was not only unbelievable but also not supported by any document before me. It is settled law that bald and unsubstantiated allegations cannot establish a party's purported position. See *Dube v Murewa* SC 68-21 at p 10, where the Supreme Court aptly remarked as follows on the impact of failure to adduce adequate evidence to prove one's claims:

> "The law is clear that bald and unsubstantiated allegations do not establish a litigant's purported or announced position. See *Akhtar v Minister of Public Commission* SC 173/97…"

47. I will now turn to deal with the requirement of causation. The plaintiff is required to show that the defendant's wrongful conduct was both the factual and legal cause of the harm suffered. In other words, the harm must not be too remote. It must be established that the defendant's actions directly caused the plaintiff's loss. It is settled that a two-pronged test to analyse causation is applied; namely, factual causation (the "but-for" test) and legal causation (whether the harm is sufficiently connected to the defendant's conduct to justify liability). The court would only proceed to consider legal causation once factual causation has been established. If not, that is the end of the enquiry. The test for causation was restated in *Mapingure v Minister of Home Affairs & Ors* SC 22-14. In that case, the court relying on the case of *Minister of Police* v *Skosana* 1977 (1) SA 31 (A) and quoting what CORBETT JA, delivering the majority judgment, stated as the governing principles, at 34E-35D, had this to say:

> "Causation in the law of delict gives rise to two rather distinct problems. The first is a factual one and relates to the question as to whether the negligent act or omission in question caused or materially contributed to …….. the harm giving rise to the claim. If it

> did not, then no legal liability can arise and *cadit quaestio*. If it did, then the second problem becomes relevant, viz. whether the negligent act or omission is linked to the harm sufficiently closely or directly for legal liability to ensue, or whether, as it is said, the harm is too remote. This is basically a juridical problem in which considerations of legal policy may play a part. ……..
> The test is thus whether but for the negligent act or omission of the defendant the event giving rise to the harm in question would have occurred. The test is otherwise known as that of the *causa (conditio) sine qua non* and I agree with my Brother Viljoen that generally speaking …….. no act, condition or omission can be regarded as a cause in fact unless it passes this test."

48. I am indebted to counsel, Mr *Biti* and Ms *Tembo,* for bringing to my attention the various cases dealing with the concept of causation. However, their analysis differed sharply, as they each drew different conclusions regarding whether the police were the factual and legal cause of the harm suffered by the plaintiff. Indeed, there have been many cases, particularly in South Africa, which have shown that the test for legal causation has been further developed, and courts have stated that there is need to adopt a flexible or 'elastic' approach to legal causation to avoid an unfair result. While the previous tests for legal causation remain relevant, there is now need to further develop the test for legal causation by applying the traditional factors and testing them against the considerations of public policy as infused with constitutional values. Any conclusion made must lead to results which resonate with public policy. In other words, legal causation must be resolved with reference to public policy. This current approach was endorsed by the Constitutional Court of South Africa in *De Klerk v Minister of Police* 2021 (4) SA 585 CC, where THERON J, writing for the majority, had this to say:

> "[24] Causation comprises a factual and legal component. Factual causation relates to the question whether the act or omission caused or materially contributed to the harm. The "but-for" test (*conditio sine qua non*) is ordinarily applied to determine factual causation. If, but for a wrongdoer's conduct, the harm would probably not have been suffered by a claimant, then the conduct factually caused the harm. It is common cause that the factual component of causation is satisfied in this case: but for the arrest by Constable Ndala, the applicant would probably not have been remanded by the Magistrate for the week.
>
> [25] Legal causation is concerned with the remoteness of damage. This entails an enquiry into whether the wrongful act is sufficiently closely linked to the harm for legal liability to ensue. Generally, a wrongdoer is not liable for harm that is too remote from the conduct concerned or harm that was not foreseeable.
>
> [26] The function of legal causation is to ensure that liability on the part of the wrongdoer does not extend indeterminately. This is especially so when conduct factually causes harm *x*, and then harm *y* befalls the plaintiff in a manner that factually relates to harm *x*. An example from our case law demonstrates this. Suppose a defendant

negligently causes a brain injury to the plaintiff; the plaintiff then becomes depressed; this depression is treated with a drug called parstellin (which has harmful side-effects when consumed with cheese); the plaintiff (unaware of the dangers of doing so) consumes cheese while on parstellin; and then suffers a stroke that results in additional harm. The harm flowing from the stroke is factually caused by the conduct of the defendant – but for their negligent conduct, that harm would not have been suffered by the plaintiff. The question of legal causation is whether that further harm is too remote from the initial conduct for liability to be imputed to the defendant.

[27] In this way, remoteness operates along with wrongfulness as a measure of judicial control regarding the imposition of delictual liability and as a "'longstop' where most right-minded people will regard the imposition of liability in a particular case as untenable, despite the presence of all other elements of delictual liability".

[28] Legal causation is resolved with reference to public policy. As held by the Supreme Court of Appeal in *Fourway Haulage SA*, although this implies that the elements of legal causation and wrongfulness will overlap to a certain degree as both are determined with reference to considerations of public policy, they remain conceptually distinct. Accordingly, even where conduct is found, on the basis of public policy considerations to be wrongful, harm factually caused by that conduct may, for other reasons of public policy, be found to be too remote for the imposition of delictual liability.

[29] Legal causation involves a flexible test that may consider a myriad of factors. This was affirmed by this Court in *Mashongwa*. Traditionally, courts oscillated between different tests for ascertaining legal causation. The traditional criteria are, among others, reasonable foreseeability, adequate causation, whether a *novus actus interveniens* intrudes and directness. But each of these tests was not without its problems and could lead to results contrary to public policy, reasonableness, fairness and justice. Hence in *Mokgethi*, the then Appellate Division adopted an "elastic" approach to legal causation. This approach is sensitive to public policy considerations and aims to keep liability within the bounds of reasonableness, fairness, and justice. In *Smit*, the Appellate Division held in the context of delict that the rigid application of legal causation to delineate the imposition of legal liability across all sets of facts is irreconcilable with the flexible approach followed in our law. Any attempt to detract from the flexibility of the test for legal causation should accordingly be resisted.

[30] The traditional tests for legal causation remain relevant as subsidiary determinants. These traditional criteria should be applied in a "flexible manner so as to avoid a result that is so unfair that it is regarded as untenable". It follows that the traditional criteria must be treated as being subsidiary to the considerations of public policy, reasonableness, fairness and justice. It is trite that these considerations of public policy are grounded in the Constitution and its values. This Court has affirmed this position in the context of contract law and wrongfulness in delict. But it has also made it clear in the context of legal causation. In *Mashongwa*, this Court held:

> "No legal system permits liability without bounds. It is universally accepted that a way must be found to impose limitations on the wrongdoer's liability. The imputation of liability to the wrongdoer depends on whether the harmful conduct is too remotely connected to the harm caused or closely connected to it. When proximity has been established, then liability ought to be imputed to the wrongdoer provided *policy considerations based on the norms and values of our Constitution and justice also point to the reasonableness of imputing liability to the defendant*." (Emphasis added.)

> [31] Grounding public policy in constitutional values accordingly offers an opportunity to infuse the common law with the values of the Constitution. The determination of remoteness entails applying the traditional factors, ascertaining their implications, and testing those implications against considerations of public policy as infused with Constitutional values."

49. The first stage of the inquiry, which is the "but for" test (or the *conditio sine qua non*) would be the starting point. It was Sibongile's uncontested evidence that the commuter omnibuses would come and load daily in the undesignated parking area in question and go without any incident. The plaintiff's evidence was that if it was not the police's conduct of throwing spikes and the violent smashing of the windscreen of the commuter omnibus on the day the accident would not have happened, and Lesley would have been alive. It is beyond doubt that from the evidence before me, but for the police's conduct of throwing spikes and violent smashing of the commuter omnibus's windscreen, triggering the chaos and chain of events that followed, the harm to the plaintiff would probably not have occurred. The police's conduct factually caused the harm.

50. Sibongile also referred to the cracking sound of the spikes when thrown on the ground as having generated fear in the drivers. That, coupled with the smashing of windscreens, was conduct that triggered a chain of events as 5 or 6 commuter omnibuses sped off from the police against the flow of traffic on a one-way road, and the first defendant having to take evasive action to avoid a head-on resulting in the accident and the harm to the plaintiff. Ms *Tembo,* in the cross-examination of the plaintiff and Sibongile asked whether the police officers were driving the commuter omnibus when the accident occurred. This erroneously appeared to suggest that because the police were not driving the motor vehicle which hit the plaintiff and her child, they did not factually cause the harm. That is clearly wrong. It does not mean that they had to be the ones driving the motor vehicle in question.

51. Since factual causation was established, the second stage of the enquiry, the legal causation, would arise. As stated in the above authorities, this is concerned with the remoteness of the damage or harm. In other words, the question would be was the wrongful act of the police sufficiently closely linked to the harm. In *casu,* the harm was foreseeable. It was not too remote from the unlawful conduct. The pandemonium that arose was foreseeable from the violent and unlawful actions of the police, and with 5 or 6 commuter omnibuses speeding against the flow of traffic, in a crowded street and at peak

time, an accident was foreseeable either from a head-on collision with those travelling in the opposite direction but in the correct way, or anyone reacting to avoid such a collision. Thus, anyone in that street at that time, when the chaos engulfed the area triggered by the violent and unlawful police conduct, including the plaintiff and her child, who were on the pavements, would be at risk of harm.

52. There is no doubt that in this case, there was no *novus actus interveniens*. The plaintiff's evidence establishing the legal causation was not seriously challenged. Most of it was admitted by Mr Kanyoka, the defendants' first witness. He confirmed under cross-examination that the witnesses he interviewed mentioned that several commuter omnibuses sped off against the one-way road. He agreed that "several" means "many". When further probed about the speed of these commuter omnibuses, he confirmed that the witnesses said the motor vehicles moved very fast. When asked what would be the effect during a crowded hour and of several commuter omnibuses moving in the wrong direction in the face of oncoming motor vehicles, he replied, "That would lead to chaos, confusion. I would say". He admitted that a head-on collision can happen, that pedestrians could get killed and that in such chaos an accident can happen.

53. And also, when asked: "It is feasible that one can take evasive action to avoid a head-on collision", he answered, "I agree that one would take evasive action." The questions further probed:

> "Q. Evasive action can include going out of the road, left or right?
> A. Yes
> …
> Q. He can hit a car parked or a vendor, or anything outside the lane?
> A. The person can hit or not hit."

Clearly, even using the traditional test for causation, the harm arising from the accident triggered by the wrongful or unlawful conduct of the police was not too remote. The harm was foreseeable and closely connected to the actions of the three police officers. It cannot be said that my conclusion leads to results contrary to public policy, reasonableness, fairness and justice in the circumstances. The flexible approach to legal causation enunciated in *De Klerk* (*supra*) would still achieve the same result as adopting the traditional test.

54. There was nothing, in my view, from the defendants to rebut the plaintiff's evidence. The evidence from Sibongile, which stood the test of the cross-examination, confirmed that the police officers attempted to run away after realising the accident their actions had caused, but were held back and had to go with the plaintiff and others to the police station. They all could not stand with the plaintiff, and two disappeared at Harare Central Police Station, while the last one also sneaked away at Parirenyatwa Hospital. The destruction of every police evidence available, including the docket with witnesses' statements, can reasonably be taken to be a cover-up for the clear criminal actions of the three police officers, as rightly put by Mr *Biti* to Mr Kanyoka under cross-examination. What else could justify the destruction of a docket in respect of a serious matter which is still pending in a criminal court, and also where the defendants are facing a huge civil suit before this court? The purported police administrative orders for the destruction of the docket cannot reasonably exist to support such criminal and unlawful conduct. The police cannot be expected to defeat the course of justice.

55. The plaintiff managed to establish that the fourth and fifth defendants are liable for the delict in that by the unlawful (wrongful) conduct of the police, they negligently caused the harm suffered by the plaintiff. They caused the accident, and the fourth and fifth defendants must be held vicariously liable for the police officers' unlawful and reckless conduct. The defendants could not rebut the plaintiff's evidence. I agree with Mr *Biti* that there was "enough relationship between the unlawful, blatant actions of the police, the foreseeable flight of the commuter omnibuses, and the death of the child".

DISPOSITION

56. I am satisfied that the plaintiff established her case against the fourth and fifth defendants. Accordingly, judgment must be granted in her favour. I must point out strongly that police officers, when enforcing the law, must take appropriate and proportionate actions to bring suspects to book. They must give due regard to the possible dangers their actions might bring to bear on the safety of the general public. Human life is sacrosanct. The violent, indiscriminate smashing of commuter omnibuses or motor vehicles and the use of spikes in crowded streets and during peak hours can never be justifiable use of force. Such actions are inimical to modern-day policing standards. The

police must, accordingly, exercise extreme restraint when dealing with public transporters in crowded streets.

57. The conduct of the three police officers in question was criminal, and proper investigations ought to have ensued to bring them to justice. Unfortunately, they could not be held accountable for their criminal conduct. The life of an innocent child was needlessly lost. With that loss, the plaintiff's life was completely shattered. As evidence before me confirmed, it has been extremely difficult for her to live a normal life since the accident. The events of 17 April 2017 have remained stuck in her mind as she further lamented that had it not been for the actions of the police, Lesley would have been alive. Her life would never be the same again. The loss of her only son can never be compensated for by any amount of money. She must, however, pick up the pieces and move on with life, difficult as it might be.

58. As regards the damages, the parties agreed on the quantum in the sum of US$42,000.00. The court shall endorse the parties' agreement on that figure. Her claim must, therefore, succeed. Costs shall follow the cause. I must state, however, that parties or their legal practitioners must desist from the use of "insolent and invective language" in pleadings, written or oral submissions before the court. They must always defend their positions using appropriate language and treat the other party and the court with respect. Inappropriate language brings the administration of justice into disrepute and may also create the basis for a punitive order of costs *de bonis propriis*. This position was reiterated in *Mushoriwa & Ors v Parliament of Zimbabwe & Anor* CCZ 04-23. Indeed, the selection of the words in para(s) 6-9 of the defendants' submissions shows a lack of respect for the other litigant and the court. It is time that legal practitioners take seriously the warnings from the courts.

59. In the premises, it is ordered as follows:

    1. The 4th and 5th defendants shall pay the plaintiff the sum of US$42,000.00 together with interest thereon calculated at the prescribed rate from the date of judgment to the date of payment jointly and severally, the one paying, the other to be absolved.
    2. The 4th and 5th defendants shall pay the costs of suit jointly and severally, the one paying, the other to be absolved.

DEMBURE J: ……

Tendai Biti Law, plaintiff's legal practitioners
Civil Division of the Attorney-General's Office, 4th and 5th defendants' legal practitioners